46 Ill. App. 3d 569, 571, 360 N. E. 2d 1252, 1253 (1977). The court stated:

> "We believe that defendants failed to establish any prejudice to their own constitutional rights because they were not persons aggrieved by the unlawful search and seizure. . . . They wrongly seek to establish prejudice only through the use of evidence gathered as a consequence of a search and seizure directed at someone else and fail to prove an invasion of their own privacy. *Alderman* v. *United States* (1969), 394 U. S. 165 . . . ." *Id.*, at 571–572, 360 N. E. 2d, at 1254.

The Illinois Supreme Court denied petitioners leave to appeal.

II

Petitioners first urge us to relax or broaden the rule of standing enunciated in *Jones* v. *United States*, 362 U. S. 257 (1960), so that any criminal defendant at whom a search was "directed" would have standing to contest the legality of that search and object to the admission at trial of evidence obtained as a result of the search. Alternatively, petitioners argue that they have standing to object to the search under *Jones* because they were "legitimately on [the] premises" at the time of the search.

The concept of standing discussed in *Jones* focuses on whether the person seeking to challenge the legality of a search as a basis for suppressing evidence was himself the "victim" of the search or seizure. *Id.*, at 261.[2] Adoption of

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[2] Although *Jones* v. *United States* was based upon an interpretation of Fed. Rule Crim. Proc. 41 (e), the Court stated in *Alderman* v. *United States*, 394 U. S. 165, 173 n. 6 (1969), that Rule 41 (e) conforms to the general standard and is no broader than the constitutional rule. See *United States* v. *Calandra*, 414 U. S. 338, 348–349, n. 6 (1974).

There is an aspect of traditional standing doctrine that was not considered in *Jones* and which we do not question. It is the proposition that a party seeking relief must allege such a personal stake or interest in

the so-called "target" theory advanced by petitioners would in effect permit a defendant to assert that a violation of the Fourth Amendment rights of a third party entitled him to have evidence suppressed at his trial. If we reject petitioners' request for a broadened rule of standing such as this, and reaffirm the holding of *Jones* and other cases that Fourth Amendment rights are personal rights that may not be asserted vicariously, we will have occasion to re-examine the "standing" terminology emphasized in *Jones*. For we are not at all sure that the determination of a motion to suppress is materially aided by labeling the inquiry identified in *Jones* as one of standing, rather than simply recognizing it as one involving the substantive question of whether or not the proponent of the motion to suppress has had his own Fourth Amendment rights infringed by the search and seizure which he seeks to challenge. We shall therefore consider in turn petitioners' target theory, the necessity for continued adherence to the notion of standing discussed in *Jones* as a concept that is theoretically distinct from the merits of a defendant's Fourth Amendment claim, and, finally, the proper disposition of petitioners' ultimate claim in this case.

A

We decline to extend the rule of standing in Fourth Amendment cases in the manner suggested by petitioners. As we stated in *Alderman* v. *United States*, 394 U. S. 165, 174 (1969), "Fourth Amendment rights are personal rights which, like some other constitutional rights, may not be vicariously

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the outcome of the controversy as to assure the concrete adverseness which Art. III requires. See, *e. g.*, *O'Shea* v. *Littleton*, 414 U. S. 488, 493 (1974); *Flast* v. *Cohen*, 392 U. S. 83, 99 (1968); *Baker* v. *Carr*, 369 U. S. 186, 204 (1962). Thus, a person whose Fourth Amendment rights were violated by a search or seizure, but who is not a defendant in a criminal action in which the illegally seized evidence is sought to be introduced, would not have standing to invoke the exclusionary rule to prevent use of that evidence in that action. See *Calandra*, *supra*, at 352 n. 8.

asserted." See *Brown* v. *United States,* 411 U. S. 223, 230 (1973); *Simmons* v. *United States,* 390 U. S. 377, 389 (1968); *Wong Sun* v. *United States,* 371 U. S. 471, 492 (1963); cf. *Silverman* v. *United States,* 365 U. S. 505, 511 (1961); *Gouled* v. *United States,* 255 U. S. 298, 304 (1921). A person who is aggrieved by an illegal search and seizure only through the introduction of damaging evidence secured by a search of a third person's premises or property has not had any of his Fourth Amendment rights infringed. *Alderman, supra,* at 174. And since the exclusionary rule is an attempt to effectuate the guarantees of the Fourth Amendment, *United States* v. *Calandra,* 414 U. S. 338, 347 (1974), it is proper to permit only defendants whose Fourth Amendment rights have been violated to benefit from the rule's protections.[3] See *Simmons* v. *United States, supra,* at 389. There is no reason to think that a party whose rights have been infringed will not, if evidence is used against him, have ample motivation to move to suppress it. *Alderman, supra,* at 174. Even if such a person is not a defendant in the action, he may be able to recover damages for the violation of his Fourth Amendment rights, see *Monroe* v. *Pape,* 365 U. S. 167 (1961), or seek redress under state law for invasion of privacy or trespass.

In support of their target theory, petitioners rely on the following quotation from *Jones:*

> "In order to qualify as a 'person aggrieved by an unlawful search and seizure' one must have been a victim of a search or seizure, *one against whom the search was*

[3] The necessity for a showing of a violation of personal rights is not obviated by recognizing the deterrent purpose of the exclusionary rule, *Alderman* v. *United States, supra,* at 174. Despite the deterrent aim of the exclusionary rule, we never have held that unlawfully seized evidence is inadmissible in all proceedings or against all persons. See, *e. g., United States* v. *Ceccolini,* 435 U. S. 268, 275 (1978); *Stone* v. *Powell,* 428 U. S. 465, 486 (1976); *United States* v. *Calandra,* 414 U. S., at 348. "[T]he application of the rule has been restricted to those areas where its remedial objectives are thought most efficaciously served." *Ibid.*

> *directed,* as distinguished from one who claims prejudice only through the use of evidence gathered as a consequence of a search or seizure directed at someone else." 362 U. S., at 261 (emphasis added).

They also rely on *Bumper* v. *North Carolina,* 391 U. S. 543, 548 n. 11 (1968), and *United States* v. *Jeffers,* 342 U. S. 48 (1951).

The above-quoted statement from *Jones* suggests that the italicized language was meant merely as a parenthetical equivalent of the previous phrase "a victim of a search or seizure." To the extent that the language might be read more broadly, it is dictum which was impliedly repudiated in *Alderman* v. *United States, supra,* and which we now expressly reject. In *Jones,* the Court set forth two alternative holdings: It established a rule of "automatic" standing to contest an allegedly illegal search where the same possession needed to establish standing is an essential element of the offense charged;[4] and second, it stated that "anyone legitimately on premises where a search occurs may challenge its legality by way of a motion to suppress." 362 U. S., at 264, 267. See *Combs* v. *United States,* 408 U. S. 224, 227 n. 4 (1972); *Mancusi* v. *DeForte,* 392 U. S. 364, 368 n. 5 (1968); *Simmons* v. *United States, supra,* at 390. Had the Court intended to adopt the target theory now put forth by petitioners, neither of the above two holdings would have been necessary since Jones was the "target" of the police search in that case.[5] Nor does *United States* v. *Jeffers, supra,* or

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[4] We have not yet had occasion to decide whether the automatic-standing rule of *Jones* survives our decision in *Simmons* v. *United States,* 390 U. S. 377 (1968). See *Brown* v. *United States,* 411 U. S. 223, 228–229 (1973). Such a rule is, of course, one which may allow a defendant to assert the Fourth Amendment rights of another.

[5] The search of the apartment in *Jones* was pursuant to a search warrant naming Jones and another woman as occupants of the apartment. The affidavit submitted in support of the search warrant alleged that Jones and